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U.S. SECURITIES AND
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Issue 83-4 January 6, 1983

# ADMINISTRATIVE PROCEEDINGS

INITIAL DECISION FINDS PAINE WEBBER WILFULLY AIDED AND ABETTED WILFUL VIOLATION OF TENDER OFFER PROVISIONS

Administrative Law Judge David J. Markun has filed an initial decision finding that Paine Webber Jackson & Curtis, Incorporated, a broker-dealer registered with the Commission, wilfully aided and abetted a wilful violation of the tender offer requirements of Section 14(d) of the Securities Exchange Act of 1934, 15 U.S.C. §78n(d), in purchasing for a client on the Pacific Stock Exchange, in June 1980, 9.9% of the outstanding common stock of Diamond International Corporation in a single transaction involving some 256 sellers. The client concededly did not comply with the tender offer requirements of Section 14(d) and Commission rules thereunder. A tender offer under Section 14(d) by another offeror was pending at the time of the June 1980 acquisition of 9.9% of the Diamond common stock by Respondent's client.

The decision further found that two associated persons of the Respondent, wholly-owned broker-dealer subsidiaries, Blyth Eastman Paine Webber and Paine Webber Mitchell Hutchins also wilfully aided and abetted the primary violation, thus establishing an additional basis for imposition of a sanction against the Respondent.

On the basis of several factors, Judge Markun concluded that the finding by the Commission of wilful aiding and abetting violations would adequately satisfy the public interest without imposition of a sanction upon the Respondent.

The decision is subject to review by the Commission on its own motion or on petition of a party.

# CIVIL PROCEEDINGS

RELTRON CORP. ENJOINED

The Commission announced that on January 5 the U.S. District Court for the District of Columbia entered a Final Judgment of Permanent Injunction against Reltron Corp. of Rochester, New York, restraining it from failing to file timely periodic reports and ordering it to comply with certain undertakings. Reltron, consenting to the entry of the Court's judgment, admitted that it had filed reports in an untimely manner on 13 separate occasions and failed to file six Notifications of Late Filing required to have been filed in connection with its late periodic reports. The Commission's complaint was filed on November 9, 1982. Reltron has agreed to adopt certain procedures to assure timely filing of reports required to be filed under the Securities Exchange Act of 1934. (SEC v. Reltron Corp., U.S.D.C. D.C., Civil Action No. 82-3191). (LR-9856)

# INVESTMENT COMPANY ACT RELEASES

NATIONWIDE INVESTING FOUNDATION

A notice has been issued giving interested persons until January 31 to request a hearing on an application filed by Nationwide Investing Foundation and Heritage Securities, Inc. (Applicants), for an order: (1) pursuant to Section 11(a) of the Investment Company Act of 1940 approving certain proposed exchanges; (2) pursuant to Section 6(c) of the Act exempting Applicants from the provisions of Section 22(d) of the Act in connection with those exchanges; and (3) pursuant to Section 6(c) of the Act granting a conditional exemption from the provisions of Rules 2a-4 and 22c-1 under the Act to the extent necessary to allow the price per share of one of Nationwide's classes of shares, Nationwide U.S. Government Money Market Fund, to be calculated to the nearest one cent on a share value of one dollar. (Rel. IC-12945 - Jan. 4)

LIQUIDITY FUND FOR THRIFTS, INC.

A notice has been issued giving interested persons until January 31 to request a hearing on an application by Liquidity Fund for Thrifts, Inc., for an order, pursuant to Section 6(c) of the Investment Company Act of 1940, exempting it from the provisions of Section 2(a)(41) of the Act and Rules 2a-4 and 22c-1 thereunder to the extent necessary to permit it to compute the net asset value per share of its Short-Term Portfolio using the amortized cost method of valuing portfolio securities. (Rel. IC-12946 - Jan. 4)

## LISTING, DELISTING AND UNLISTED TRADING ACTIONS

UNLISTED TRADING SOUGHT

A notice has been issued giving interested persons until January 25 to comment on the applications of the Midwest Stock Exchange, Inc. for unlisted trading privileges in three issues which are listed and registered on one or more other national securities exchanges and are reported in the consolidated transaction reporting system. (Rel. 34-19398)

UNLISTED TRADING GRANTED

Orders have been issued granting the applications of the following stock exchanges for unlisted trading privileges in issues which are listed and registered on one or more other national securities exchanges and are reported in the consolidiated transaction reporting system: Philadelphia Stock Exchange, Inc. - five issues. (Rel. 34-19399); and the Midwest Stock Exchange, Inc. - seven issues. (Rel. 34-19400)

## SELF-REGULATORY ORGANIZATIONS

NOTICE OF PROPOSED RULE CHANGES

The following stock exchanges have filed proposed rule changes pursuant to Rule 19b-4: The New York Stock Exchange, Inc. (SR-NYSE-82-22) to provide for minimum margin on uncovered short positions in options on a broad based stock index. (Rel. 34-19396); and The American Stock Exchange, Inc. (SR-Amex-82-20) to provide for minimum margin on uncovered short positions in stock index options. (Rel. 34-19397)

Publication of the proposals are expected to be made in the Federal Register during the week of January 10.

APPROVAL OF PROPOSED RULE CHANGES

The Commission has approved proposed rule changes filed under Rule 19b-4 by the following: The Municipal Securities Rulemaking Board (SR-MSRB-82-13) to amend MSRB Rule G-12(e)(v) to permit delivery of tax exempt notes in denominations smaller than those specified in an inter-dealer trade confirmation if the notes delivered can be aggregated to constitute the denominations specified. (Rel. 34-19390); The New York Stock Exchange, Inc. (SR-NYSE-82-21) involving the size of orders eligible for routing in the NYSE's Designated Order Turnaround (DOT) System, the Active Stock Feature of the DOT System and the design of the mark-sense cards used by specialists in reporting executions of DOT orders. (Rel. 34-19392); and The Midwest Stock Exchange, Inc. (SR-MSE-82-7) to amend MSE's Constitution to add two additional public governors to MSE's Board of Governors and to allow one public governor to be a former officer of the Exchange who is not a broker or dealer. (Rel. 34-19402)

## MISCELLANEOUS

ORDERS GRANTING APPLICATION PURSUANT TO SECTION 12(h)

Orders have been issued granting the application of the following companies, pursuant to Section 12(h) of the Securities Exchange Act of 1934, for an exemption from the specified requirements of the following sections of the Exchange Act: Commonwealth Dealers Life Insurance Company - reporting requirements of Section 15(d). (Rel. 34-19393); and Rochester Community Baseball, Inc. - registration, reporting proxy soliciting, and others provisions of Section 12(g), 13, 14 and 16. (Rel. 34-19394)

## SECURITIES ACT REGISTRATIONS

The following registration statements have been filed with the SEC pursuant to the Securities Act of 1933. The information noted below has been taken from the cover page and the facing sheet of the prospectus and registration statement and will appear as follows: Form, Name, address and phone number (if available) of the issuer of the security; Title and the number or face amount of the securities being offered; Name of the managing underwriter (if applicable); Whether the offering is a rights offering; File number and date filed; Assigned Branch; if the registration statement is a New Issue; and [S] denoting SHELF REGISTRATION pursuant to Rule 415.

(S-18) BLUE GRASS BREEDERS, INC., 2825 East Long Court, Littleton, CO 80121 (303) 694-1370 - 24,000,000 common shares. Underwriter: Rocky Mountain Securities & Investments, Inc., 909 17th St., Suite 200, Denver, CO 80202 (303) 623-6700. The company will acquire, breed and sell thoroughbred horses. (File 2-81022-D - Dec. 21, 1982) (Br. 3 - New Issue)

(S-18) MICROCOMM CORPORATION, 1407 East Cliff Rd., Burnsville, MN 55337 (612) 894-7790 - 600,000 shares of common stock. Underwriter: Summit Investment Corporation, Suite 412, Butler Square Bldg., 100 North 6th St., Minneapolis, MN 55403. The company designs, manufactures and sells setback thermostats. (File 2-81045-C - Dec. 23, 1982) (Br. 8 - New Issue)

(S-18) OLYMPIC NORTHERN AIRLINES, INC., Suite 115, Terminal Bldg., Boeing Field, Seattle, WA 98108 (206) 762-8010 - 714,000 shares of Class A common stock. The company plans to provide high frequency scheduled airline service. (File 2-81055-S - Dec. 23, 1982) (Br. 3 - New Issue)

(S-18) UNITED BANCORP, 605 S. E. Kane St., Roseburg, OR 97470 (503) 440-2660 - $1,950,000 of Series A/Series B floating rate, convertible subordinated debentures, due December 15, 1992. Underwriter: Somers, Grove & Co., Inc., 707 S. W. Washington St., Portland, OR 97205. (File 2-81060-S - Dec. 23, 1982) (Br. 1 - New Issue)

(S-18) H-S ROYALTY, LTD., 507 Philtower Bldg., Tulsa, OK 74103 (918) 583-0178 - 80,000 units of limited partnership interests. (File 2-81108-FW - Dec. 29, 1982) (Br. 10 - New Issue)

(S-18) FAMILY SHOWTIME THEATRES, INC., 61 Broadway, New York, NY 10006 - 500,000 units. Underwriter: Muller and Company, Inc., 111 Broadway, New York, NY 10006 (212) 766-3200. The company has undertaken to open ten "Chuck E. Cheeze's Pizza Time Theatre" family-oriented restaurant and entertainment centers in various cities in the State of New York. (File 2-81112-NY - Dec. 29, 1982) (Br. 4 - New Issue)

(S-18) SPORTS PROMOTIONS OF TULSA, INC., 100 Civic Center, Tulsa, OK 74103 (918) 582-8283 - 180,000 shares of common stock. Underwriter: S. W. Devanney & Company, Inc., 10200 East Girard Ave., Suite 150-C, Denver, CO 80237. The company was incorporated to maintain, operate and control a professional ice hockey team. (File 2-81178 - Jan. 4) (Br. 4 - New Issue)

(S-3) WHIRLPOOL CORPORATION, Benton Harbor, MI 49022 (616) 926-5000 - 1,497,508 shares of common stock. Underwriters: Goldman, Sachs & Co. and Dean Witter Reynolds Inc. The company and its consolidated subsidiaries manufacture major household appliances. (File 2-81182 - Jan. 5) (Br. 10) [S]

# ACQUISITIONS OF SECURITIES

Companies and individuals must report to the Commission within ten days on Schedule 13D if after the acquisition of equity securities of a public company their beneficial interest therein exceeds five percent. Persons eligible to use the short form (Schedule 13G) may in lieu of filing a Schedule 13D file a Schedule 13G within 45 days after the end of the calendar year in which the person became subject to Section 13(d)(1). Companies and individuals making a tender offer must have on file at the time the tender offer commences a Schedule 14D-1.

Below is a list of recent filings of Schedules 13D and 14D, which includes the following information: Column 1 - the company purchased (top), and the name of the purchaser; Column 2 - the type of security purchased; Column 3 - the type of form filed; Column 4 - the date the transaction occurred; Column 5 - the current number of shares (in 000's) owned (top) and the current percent owned; Column 6 - the CUSIP number (top) and the prior percent owned; and Column 7 - the status of the filing, i.e., new, update, or revision.

| | | FORM | EVENT DATE | SHRS(000)/ %OWNED | CUSIP/ PRIOR% | FILING STATUS |
|---|---|---|---|---|---|---|
| AMERICAN METALS SVC INC | COM | | | 115 | 02748710 | |
| STEPHENSON MERCHANT BK | | 13D | 12/23/82 | 5.7 | 0.0 | NEW |
| CADO SYS CORP | COM | | | 361 | 12760410 | |
| ALPINE ASSOC & ECKERT VICTORIA | | 13D | 12/23/82 | 7.3 | 0.0 | NEW |
| CHEMINEER INC | COM | | | 207 | 16381810 | |
| INTERPACE CORP | | 13D | 12/23/82 | 17.9 | 0.0 | NEW |
| CINDYS INC | COM | | | 710 | 17239910 | |
| SOUTHSIDE MGMT ET AL | | 13D | 12/17/82 | 33.9 | 31.4 | UPDATE |
| COGENIC ENERGY SYS INC | COM | | | 1,338 | 19239110 | |
| NISSLEY WARREN W | | 13D | 12/ 1/82 | 21.2 | 22.3 | UPDATE |
| COLONIAL BANCORP INC | COM | | | 707 | 19549910 | |
| FSC CORP | | 13D | 12/17/82 | 33.3 | 0.0 | NEW |
| COUNTY TOWER CORP | COM | | | 87 | 22258810 | |
| MORRISSEY JOSEPH JR | | 13D | 12/22/82 | 5.2 | 4.7 | UPDATE |
| FEDERAL RLTY INVT TR | SH BEN INT | | | 463 | 31374720 | |
| SIAM LTD | | 13D | 12/21/82 | 11.8 | 9.8 | UPDATE |
| FINANCIAL NEWS NETWORK INC | COM | | | 738 | 31790210 | |
| MERRILL LYNCH CO/MLPF&S | | 13D | 12/22/82 | 15.7 | 0.0 | NEW |
| GULF RES & CHEM CORP | COM | | | 2,464 | 40249610 | |
| ZOPRESS COMMERCIAL S A ET AL | | 13D | 12/10/82 | 27.5 | 25.1 | UPDATE |
| NACHMAN CORP | COM | | | 811 | 62958110 | |
| LEGGETT & PLATT INC | | 13D | 12/21/82 | 84.3 | 0.0 | NEW |
| NATIONAL CONTROLS INC | COM | | | 287 | 63556110 | |
| RAMSAY CORP | | 13D | 12/21/82 | 23.6 | 0.0 | NEW |
| NATIONAL ENERGY CAPITAL CORP | COM | | | 248 | 63580010 | |
| NELSON RICHARD H | | 13D | 11/23/82 | 11.9 | 0.0 | NEW |
| NATIONAL ENERGY CAPITAL CORP | COM | | | 268 | 63580010 | |
| NISSLEY WARREN W | | 13D | 11/23/82 | 12.8 | 0.0 | NEW |
| NATIONAL ENERGY CAPITAL CORP | COM | | | 550 | 63580010 | |
| SHLENSKY PAUL D | | 13D | 11/23/82 | 26.4 | 0.0 | NEW |
| NATIONAL ENERGY CAPITAL CORP | COM | | | 103 | 63580010 | |
| WARNER DONALD | | 13D | 11/23/82 | 5.0 | 0.0 | NEW |
| NUMBER 1 TV INC | COM | | | 63 | 67052310 | |
| SILVA KENNETH & DOROTHEA | | 13D | 9/28/82 | 6.2 | 0.0 | NEW |

| | | | | | | |
|---|---|---|---|---|---|---|
| REPCO INC | COM | | | 243 | 75990910 | |
| WEBCOR ELECTRONICS INC | | 13D | 12/21/82 | 20.0 | 0.0 | NEW |
| SCOPE INC | COM | | | 243 | 80914610 | |
| PACE RANDOLPH & RODNEY PATRICK | | 13D | 12/21/82 | 20.0 | 0.0 | NEW |
| SUBURBAN PROPANE GAS CORP | COM | | | 744 | 86447310 | |
| DR ACQUISITION/NATL DISTILLERS | | 14D-1 | 12/30/82 | 14.2 | 0.0 | NEW |
| TPC COMMUNICATIONS INC | COM | | | 60 | 87261510 | |
| WOODLAND CAPITAL CO | | 13D | 12/29/82 | 6.3 | 0.0 | NEW |

## RECENT 8K FILINGS

Form 8-K is used by companies to file current reports on the following events:

Item 1. Changes in Control of Registrant.
Item 2. Acquisition or Disposition of Assets.
Item 3. Bankruptcy or Receivership.
Item 4. Changes in Registrant's Certifying Accountant.
Item 5. Other Materially Important Events.
Item 6. Resignations of Registrant's Directors.
Item 7. Financial Statements and Exhibits.

The companies listed below have filed 8-K reports for the date indicated and/or amendments to 8-K reports previously filed, responding to the item(s) of the form specified. Copies of the reports may be purchased from the Commission's Public Reference Section (in ordering, please give the date of the report). An invoice will be included with the requested material when mailed.

| COMPANY | ITEMS NO. | DATE | |
|---|---|---|---|
| ACADEMY COMPUTING CORP | 4 | 12/14/82 | |
| ADVANCE ROSS CORP | 2,7 | 12/29/82 | |
| AIR FLORIDA SYSTEM INC | 2,5,6 | 09/30/82 | |
| ALGERAN INC | 2,7 | 12/15/82 | |
| ALPHA PETROLEUM EXPLORATION CORP | 4 | 12/29/82 | |
| AMERICAN BEVERAGE CORP /NY/ | 5 | 11/05/82 | |
| AMERICAN BILTRITE INC | 1,2 | 12/16/82 | |
| AMERICAN CENTURY CORP | 5,7 | 10/29/82 | AMEND |
| AMERICAN EQUITY INVESTMENT TRUST | 2,7 | 12/17/82 | |
| AMERICAN PROPERTY INVESTORS VIII | 2,7 | 12/15/82 | |
| ANIMATED ELECTRONICS INC | 4,5,6,7 | 12/09/82 | |
| ANRET INC | 1 | 12/09/82 | |
| ARAPAHO PETROLEUM INC | 5 | 12/16/82 | |
| ARGOSY ENERGY INC | 1 | 05/04/82 | |
| ARKANSAS POWER & LIGHT CO | 5 | 12/17/82 | |
| ARTRA GROUP INC | 5,7 | 12/29/82 | |
| AT&E CORP | 4 | 12/03/82 | |
| AZTEC RESOURCES CORP | 5 | 12/16/82 | |
| BALCOR EQUITY PROPERTIES XII | 2,7 | 12/15/82 | |
| BANCORP OF MISSISSIPPI INC | 2,7 | 07/01/82 | |
| BANGOR HYDRO ELECTRIC CO | 5 | 12/21/82 | |
| BANKS OF IOWA INC | 5,7 | 12/15/82 | |
| BASIC AMERICAN CORP | 2,7 | 12/01/82 | |
| BILTRITE CORP | 1,7 | 12/16/82 | |
| BOETTCHER WESTERN PROPERTIES FUND 1981-8 | 2,7 | 12/17/82 | |
| BOETTCHER WESTERN PROPERTIES II LTD | 2,7 | 12/17/82 | |
| BREEZE CORPORATIONS INC | 1,2,7 | 12/15/82 | |
| BRUSH WELLMAN INC | 2,5,7 | 12/17/82 | |
| BTK INDUSTRIES INC | 5 | 12/27/82 | |
| CABLE TV FUND 10-B | 2,7 | 11/26/82 | AMEND |
| CALLON DRILLING FUND 1981 | 7 | 11/19/82 | AMEND |
| CALLON DRILLING FUND 1982-A | 7 | 11/19/82 | AMEND |
| CALLON INSTITUTIONAL ROYALTY INVESTORS I | 7 | 11/19/82 | |
| CALMARK REAL ESTATE FUND LTD | 2,7 | 12/02/82 | |
| CARE CORP | 2,7 | 12/15/82 | |

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RECENT 8K FILINGS CONT.

| | | | |
|---|---|---|---|
| LINCOLN PLAZA RESOURCES INC | 5,7 | 12/22/82 | |
| LOUISIANA POWER & LIGHT CO /LA/ | 5 | 12/21/82 | |
| MAINE YANKEE ATOMIC POWER CO | 5 | 12/13/82 | |
| MCCORMICK COMMODITY FUND I | 5 | 12/09/82 | |
| MCCORMICK COMMODITY FUND II | 5 | 12/09/82 | |
| MCDOWELL ENTERPRISES INC | 5,7 | 12/03/82 | |
| MCNEIL PACIFIC INVESTORS FUND 1972 | 3 | 06/03/82 | AMEND |
| MERRILL LYNCH MBS INC | 7 | 11/26/82 | |
| MID AMERICA INDUSTRIES INC | 5,7 | 11/15/82 | |
| MIDDLE SOUTH UTILITIES INC | 5 | 12/17/82 | |
| MISSOURI EDISON CO | 5 | 12/13/82 | |
| MONTANA POWER CO /MT/ | 5 | 12/28/82 | |
| MULTI BENEFIT REALTY FUND IV | 5,7 | 12/01/82 | |
| NATIONAL CENTRAL FINANCIAL CORP | 5,7 | 12/15/82 | |
| NATIONAL MOBILE CONCRETE CORP | 1 | 12/13/82 | |
| NATIONAL PROPERTY INVESTORS 5 | 2,7 | 12/13/82 | |
| NEW PLAN REALTY TRUST | 5,7 | 12/15/82 | |
| NEW YORK TIMES CO | 7 | 12/15/82 | AMEND |
| PARAGON 1979 DRILLING PROGRAM LTD | 4,7 | 12/17/82 | |
| PARAGON 80-1 LTD | 4,7 | 12/17/82 | |
| PARAGON 80-2 LTD | 4,7 | 12/17/82 | |
| PIERCE S S CO INC | 5 | 12/01/82 | |
| PIONEER STANDARD ELECTRONICS INC | 2,7 | 12/10/82 | |
| PRO SCAN INC | 5 | 12/23/82 | |
| PSA INC | 5,7 | 12/22/82 | |
| REFINEMET INTERNATIONAL CO | 1,2,7 | 12/15/82 | |
| REFLECTONE INC | 4 | 12/06/82 | |
| RELIANCE GROUP HOLDINGS INC | 5,7 | 12/23/82 | |
| SABA OIL & GAS CORP | 5 | 12/16/82 | |
| SIERRA REAL ESTATE EQUITY TRUST | 2,7 | 12/10/82 | |
| SIGMA ALDRICH CORP | 5 | 11/23/82 | |
| SLATER ELECTRIC INC | 5 | 12/13/82 | |
| SOUTHERN CO | 5 | 12/22/82 | |
| SPM GROUP INC | 5,7 | 12/09/82 | |
| TERMICOLD CORP | 1,2,7 | 12/14/82 | |
| TEXAS ENERGIES INC | 5,7 | 12/17/82 | |
| TOCOM INC | 5 | 12/16/82 | |
| TOSCO CORP | 5,7 | 12/09/82 | |
| TRANSTECHNOLOGY CORP | 2,7 | 12/15/82 | |
| UNIT 1982 8 OIL & GAS PROGRAM | 5,7 | 12/10/82 | |
| UNITED COMPANIES FINANCIAL CORP | 5 | 12/10/82 | |
| UNITED EDUCATORS INC | 4,7 | 07/31/82 | |
| UNITED STATES MUTUAL REAL ESTATE INVESTM | 5,7 | 12/15/82 | |
| UNIVERSAL BANCORP | 5 | 12/08/82 | |
| WALKER COLOR INC | 5 | 12/03/82 | |
| WARNER COMMUNICATIONS INC | 5,7 | 12/08/82 | |
| WASHINGTON MUTUAL SAVINGS BANK SERIES A | 7 | 11/24/82 | |
| WEST BAY FINANCIAL CORP /CA/ | 2 | 12/20/82 | |
| WORLDWIDE ENERGY CORP | 5 | 12/21/82 | |
| XEROX CORP | 5 | 12/17/82 | |
| ZERO CORP | 5,7 | 12/20/82 | |
| ZIMMER CORP | 5 | 12/13/82 | |